STANDARD OPERATING PROCEDURE			G-9800
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **03/08/22**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES N.R.S. 29-4001 TO 29-4013			
SUBJECT SEX OFFENDER REGISTRATION	CROSS REFERENCE			

I. Purpose:

The purpose of this policy is to establish the guidelines for the registration of sex offenders.

II. Policy:

Pursuant to Nebraska State Law, the Sarpy County Sheriff's Office shall register all persons subject to the Sex Offender Registration Act who reside, attend school, or are employed in Sarpy County. The Sheriff's Office shall protect the citizens of Sarpy County by ensuring proper and timely registration and monitoring of sex offenders in accordance with state and federal law.

III. Procedure:

A. Qualifying Sexual Offenses: (Per N.R.S Chapter 29-4003)

1. Any person who has plead guilty to, pled nolo contendere, or been found guilty of the following offenses shall be subject to the Sex Offender Registration Act:

a) Kidnapping of a minor pursuant to section 28-313, except when the person is the parents of the minor and was not convicted of any other offense in this section;

b) False imprisonment of a minor pursuant to section 28-314 or 28-315;

c) Sexual assault pursuant to section 28-319 or 28-320;

d) Sexual assault of a child in the second or third degree pursuant to section 28-320.01;

e) Sexual assault of a child in the first degree pursuant to section 28-319-.01

f) Sexual abuse of a vulnerable adult pursuant to subdivision (1) (c) of section 28-386;

g) Incest of a minor pursuant to section 28-802;

h) Pandering on a minor pursuant to section 28-802;

i) Visual depiction of sexually explicit conduct of a child pursuant to section 28-1463.03 or 28-1463.05;

j) Knowingly possessing any visual depiction of sexually explicit conduct which has a child as one of its participants or portrayed observers pursuant to section 28-813.01;

k) Criminal child enticement pursuant to section 28-311;

l) Child enticement by means of an electronic communication device pursuant to section 28-320.02;

m) Debauching a minor pursuant to section 28-805; or

n) Attempt, solicitation, aiding or abetting, being an accessory , or conspiracy to commit an offense listed in subdivisions (III)(A)(1)(a)through (III)(A)(1)(m) of this section;

o) Has ever pled guilty to, pled nolo contendere to, or found guilty of any offense that is substantially equivalent to a registerable offense under subdivision (III)(A)(1) of this section by any village, town, city, state, territory, commonwealth, or other jurisdiction of the United States, by the United States Government, by court-martial or other military tribunal, or by a foreign jurisdiction, notwithstanding a procedure comparable in effect to that described under section 29-2264 or any other procedure to nullify a conviction other than by pardon;

p) Is incarcerated in a jail, a penal or correctional facility, or any other public or private institution or is under probation or parole as a result of pleading guilty to or being found guilty of a registerable offense under subdivision (II)(A)(1) or (o) of this section prior to January 1, 1997; or

q) Enters the state and is required to register as a sex offender under the laws of another village, town, city, state, territory, commonwealth, or other jurisdiction of the United States.

2. In addition to the registerable offenses under subdivision (III) (A) of this section, the Sex Offender Registry Act applies to any person who on or after January 1, 2010:

(A) Except as provided in subsection (III)(2)(B) of this section, has ever plead guilty to, or been found guilty of any of the following:

(I) Murder in the first degree pursuant to section 28-303;
(II) Murder in the second degree pursuant to section 28-304;
(III) Manslaughter pursuant to section 28-305;
(IV) Assault in the first degree pursuant to section 28-308;
(V) Assault in the second degree pursuant to section 28-309;
(VI) Assault in the third degree pursuant to section 28-310;
(VII) Stalking pursuant to section 28-311.03;
(VIII) Unlawful intrusion of a minor pursuant to section 28-311.08;
(IX) Kidnapping pursuant to section 28-313;
(X) False imprisonment pursuant to section 28-314 or 28-315;
(XI) Sexual abuse of an inmate or parolee in the first degree pursuant to section 28-322.02;
(XII) Sexual abuse of an inmate or parolee in the second degree pursuant to section 28-322.03;
(XIII) Sexual abuse of a protected individual pursuant to section 28-322.04;
(XIV) Incest pursuant to section 28-703;
(XV) Child abuse pursuant to subdivision (1)(d) or (e) of section 28-707;
(XVI) Enticement by electronic communication device pursuant to section 28-833; or
(XVII) Attempt, solicitation, aiding or abetting, being an accessory, or conspiracy to commit an offense listed in subdivisions (I) through (XVI) of this section.

(B) In order for the Sex Offender Registry to apply to the offenses listed in subdivisions (I), (II), (III), (IV), (VI), (IX), and (X) of this section, a court shall have found that evidence of sexual penetration or sexual contact, as those terms are defined in section 28-318, was present in the record, which shall include consideration of the factual basis for a plea-based conviction and information contained in the presentence report;

(C) Has ever pled guilty to, pled nolo contendere to, or been found guilty of any offense that is substantially equivalent to a registerable offense under subdivision (1)(b)(i) of this section by any village, town, city, state, territory, commonwealth, or other jurisdiction of the United States, by the United

States Government by court-martial or other military tribunal, or by a foreign jurisdiction, notwithstanding procedure comparable in effect to that described under section 29-2264 or any other procedure to nullify a conviction other than by pardon; or
Enters the state and is required to register as a sex offender under the laws of another village, town, city, state, territory, commonwealth, or other jurisdiction of the United States.

(E) A person appealing a conviction of a registerable offense under this section shall be required to comply with the act during the appeals process.

B. **Original Registration for all other Sex Offenders (e.g.:** Sex offenders moving into Nebraska from another state, or sex offenders currently sentenced to probation). All Sex offenders registering for the first time shall register with the Nebraska State Patrol.

C. **Change of Information:** A State of Nebraska Sex Offender Registration Sex Offender Registration NSP Form 792 shall be completed, in person at the Sheriff's Office on the approved registration form under the following conditions:

1. Sex Offender Address Status Changes: In person, at the Sheriff's Office, within three (3) working days before the address change.

2. Sex Offender Employment or school changes: In person, at the Sheriff's Office within three (3) working days after the change.

3. Sex Offender Incarcerated: Any registrant who is incarcerated for more than three (3) working days must inform the sheriff of the county in which they are incarcerated within three (3) working days after incarceration, of their incarceration and their expected release date, if known.

4. Sex Offender Name changes: Must be made in person, at the Sheriff's office, within three (3) working days after such change and provide a copy of legal documentation supporting the change in name.

D. **30-Day Transient Update:** Sex Offender Transient Status: In person, at the Sheriff's Office, within three (3) working days after becoming homeless. The offender must update his or her registration, in person at the Sheriff's Office on the NSP form every thirty (30) days during the time he or she remains transient. If the offender claims to be transient then complete the transient section on the NSP form including the city, county, and contact number.

E. **Verification Process:** The following is a list of verification standards for the three (3) classes of Sex Offenders:

1. **Except as provided in section 29-4005, the registration information shall be verified as provided in subsections (b), (c), and (d) of this**

section for the duration of the registration period. The person shall appear in person for such verification at the office of the Sheriff of the county in which he or she resides, has a temporary domicile, or is habitually living for the purposes of accepting verifications and shall have his or her photograph and fingerprints taken upon request of verification personnel.

2. A person required to register under the act **for fifteen years shall report every twelve months,** in person, to the office of the sheriff of the county in which he or she resides for purposes of accepting verifications, regardless of the original registration month. The person shall report, in person, in the month of his or her birth regardless of the original registration month. The sheriff shall submit such verification information to the sex offender registration and community notification division of the Nebraska State Patrol in the day it is received and, in a manner, prescribed by the Nebraska State Patrol for such purposes.

3. A person required to register under the act **for twenty-five years shall report,** in person, every six months to the office of the sheriff of the county in which he or she resides for purposes of accepting verification. The person shall report, in person, in the month of his or her birth and in the sixth month following the month of his or her birth, regardless of the original registration month. The sheriff shall submit verification information to sex offender registration and community notification division of the Nebraska State Patrol on the say it is received and in a manner prescribed by the Nebraska State Patrol for such purpose.

4. A person required to register under **the act for life shall report, in person,** every three months to the office of the sheriff of the county in which he or she resides for the purposes of accepting verification. The person shall report, in person, in the month of his or her birth and every three months following the months following the month of his or her birth, regardless of the original registration month. The Sheriff shall submit such verification information to the sex offender registration and community notification division of the Nebraska State Patrol on the day it is received and in a manner prescribed by the Nebraska State Patrol for such purpose.

a) **The verification form shall be signed by the person required to register under the act and state whether the address last reported to the division is still correct.**

b) New photographs shall be taken and uploaded to the Nebraska State Patrol SOR/Law website during a Sex Offenders Birth Month Verification, or if the person's appearance has changed (new fingerprints or DNA need not be taken).

F. **Registration Procedures Jail Division Support Staff:** Shall be responsible for the compilation and dissemination of sex offender registrations.

1. Shall make the necessary appointments for verifications and or registration of Sex Offenders.
2. Include any mental health treatment documentation.
3. Verification of Information.
4. May obtain a criminal history.
5. May obtain a driver's abstract.
6. Conduct a wants and warrants check.
7. Ensure fingerprints and photographs are included in the file.
8. Forward appropriate forms and information to Nebraska State Patrol.
9. Forward a copy of the registration form to the offender's local law enforcement agency.
10. Maintain all sex offender registration files.
11. Ensure sex offender information is entered into LRMS.

G. **The Sex Offender Registry Deputy Responsibilities: The Sex Offender Registry Deputy** shall be responsible for ensuring persons subject to the Sex Offender Registration Act are properly registered and monitored in accordance with the appropriate laws.

1. **The Sex Offender Registry Deputy** shall conduct periodic investigations to confirm sex offender addresses.

2. **The Sex Offender Registry Deputy** shall coordinate with other supervising authorities, including parole and probation officers, in conducting periodic monitoring of sex offenders to ensure compliance with all conditions of release and to ensure public safety.

H. **Road Patrol Responsibilities:** The Sarpy County Road Patrol Division shall ensure that all of the sex offenders living in Sarpy County and outside of the City limits of Bellevue, Papillion, and LaVista will be visited at his or her residence on a quarterly basis for the duration of his or her sex offender registration period. These checks shall be conducted at least once a month during the months of January, April, July, and October. Extenuating circumstances may require compliance checks outside of the quarterly checks. The times and dates of these visits will be entered into Nebraska State Patrol SOR/Law website, under Compliance checks.